

Court No. - 46

Case :- WRIT - C No. - 17725 of 2020

Petitioner :- Mohd. Muzeeb

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Tiwari Abhishek Rajesh, Gyan
Prakash Dwivedi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

At the request of learned counsel for the petitioner, put up this case on 19.11.2020 in the additional cause list.

Order Date :- 3.11.2020

SKT/-

Court No. - 46

Case :- WRIT - C No. - 17725 of 2020

Petitioner :- Mohd. Muzeeb

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Tiwari Abhishek Rajesh, Gyan
Prakash Dwivedi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Shekhar Kumar Yadav, J.

Case is adjourned at the request of Mr N. K. Tiwari,
learned counsel appearing for respondent no. 2.

Put up this case in the Additional Cause List on
25.11.2020.

Order Date :- 19.11.2020

RavindraK Singh

Court No. - 46

Case :- WRIT - C No. - 17725 of 2020

Petitioner :- Mohd. Muzeeb

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Tiwari Abhishek Rajesh, Gyan
Prakash Dwivedi

Counsel for Respondent :- C.S.C., Mahboob Ahmad, Narendra
Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Sri Tiwari Abhishek Rajesh, learned counsel for the petitioner, Sri Narendra Kumar Tiwari, learned counsel for the respondent no.2 and learned Standing Counsel for the State respondent.

The petitioner was given an electricity connection under general scheme for establishment of tube well. It is submitted that neither any equipment was made available nor any transformer was provided for running the tube well and now a recovery proceedings has been initiated against the petitioner.

Earlier the petitioner had filed Writ-C No. 8136 of 2020, wherein this Court had granted liberty to the petitioner to make representation before the respondent no. 2, thereafter, the Executive Officer was required to take final decision on the representation of the petitioner, in accordance with law. In pursuance of the order dated 05.03.2020 passed in the said writ petition, representation of the petitioner has been decided vide impugned order dated 14.07.2020, wherein it has been observed that the petitioner was found running tube-well after purchasing required equipment from open market.

In our considered opinion, the factual aspect of the matter cannot be re-adjudicated in writ jurisdiction. The petitioner if so advised may approach to the Consumer Grievance Redressal Forum under Clause 7.10 of Electricity Supply Code, 2005 for redressal of his grievances.

The present writ petition is, accordingly, dismissed on the ground of availability of an alternative remedy.

Order Date :- 25.11.2020

Ashish